

STANDARD RESIDENTIAL LEASE

This LEASE is made on ____/____/____ between Owner and Residents jointly and severally, who have agreed as follows:

Address: _____

Resident(s): _____

Owner/Management: _____

Term: _____ Beginning Date: _____ Anniversary Date: _____

Rent: _____ per month or biweekly. 1st Month's Rent: _____ Next payment due: _____

Rent due date: _____ Discounted Rent Due if paid before due date: _____ Late Fee: _____ Returned check fee: _____

Address to mail or take rent payments, payable to: _____

Security Deposit: _____ Administrative / Leasing Fee _____ First Mo. Rent _____ Total Move-in \$ _____

Additional Fees if applicable. Early Release Fee: _____, Pet Registration _____, Change Fee or Transfer fee: _____

- 1) **THREE STAR RESIDENT** – Welcome as one of our new 3-Star Residents and we look forward to serving you for at least the next 3 years. We reward long-term residents by giving them the designation of “**3-Star Residents**” and give them a choice of anniversary gifts, each anniversary date, for those who continue to stay with us.
- 2) **LEASE OF PREMISES** – Management leases Premises to Resident on the following terms for use only as a private dwelling unit and for occupancy by no other than those signing the lease and _____.
- 3) **TERM** – The Term shall start on the Beginning Date and end on the Anniversary Date. The term of this lease shall AUTOMATICALLY RENEW for additional periods of one year each. Either party may avoid renewal by giving the other party written notice of non-renewal prior to the expiration of the current term by at least 60 days in advance of the anniversary date. Management may change any of the terms of this Lease effective as of any anniversary date by giving Resident written notice of the new terms at least 60 days before an anniversary date. If Resident fails to terminate Lease prior to end of a term, Resident agrees to accept all new or changed terms.
- 4) **MOVE-IN COST** – Some Residents ask if we can work with them regarding the amount of deposit required to move-in. **We offer residents 2 options. Option A:** Resident pays standard move-in amount, which is 1st month's rent plus the full required deposit. **Option B:** Resident agrees to pay 5% higher monthly rent (which may be pro-rated for 1st or 2nd month) but only HALF the required deposit due to move-in. For example; if standard move-in cost is normally \$_____ for 1st month's rent and deposit is \$_____, total of \$_____ due. Option B gives resident the option of agreeing to pay \$_____ (5% higher) as the monthly rent but deposit required to move-in would only be \$_____ (Half normal amount). Total due is only \$_____. **Which move-in option do you prefer A or B?**
- 5) **RENT** - Resident shall pay the Initial Rent with this Lease for the initial payment due (either pro-rated amount or a full month now and pro-rated amount, beginning of the 2nd month). Thereafter, Resident shall pay Rent by money order monthly in advance or by the first day of each month without deduction or demand at designated address or bank above. **Note: When making payments at the bank, (and only at the bank), money orders or cash are acceptable forms of payment.** If any rent is not received by Due Date, Resident shall pay the Late Fee. Resident further agrees to pay the Returned Charge for any check not honored. Management will require all future payments to be made by certified funds. Please note: Manager may apply any payments received to any obligations owed by Resident, which normally means first toward any past due charges or fees, then rent.
- 6) **PAYMENT DUE DATE OPTIONS:** You may choose the standard monthly rent payment option. Or if you prefer, for your convenience, you also qualify for our special Pay Day, (also referred to as bi-weekly) Lease Plan. The bi-weekly plan lets you match your rent closer to your pay day.

Please know that under the bi-weekly plan, you will pay more overall during the course of the year for the convenience and extra handling. However, many people like and prefer the bi-weekly plan because it allows them to budget smaller payments every two weeks with their pay checks, instead of the larger monthly payments and it helps residents to avoid costly late fees, service fees or court costs. Please choose the plan that will work best for you.

____ **Option A)** Monthly \$ _____ x 12 per year - due on the _____ of each month.

____ **Option B)** Biweekly Lease (every 2 weeks) Rent divided by 2 + \$10 = \$ _____ x 26 - due every other Tuesday.

Note that if you select the biweekly lease option, you must also agree to automatic rent drafts from your checking account on the agreed upon day every other week. This worry-free automatic draft option is also available for Monthly payments as well. We always want you to have the payment option that is best for you, so should you wish to change your due date in the future, do so, simply give at least a 30 day advance notice.

- 7) **LATE FEE** - A late fee of 10% of the rental amount will be assessed on rent received after the 1st of the month (or due date), without a grace period. Acceptance of late rental payments without billing for late fee does not relieve the Resident from further obligation payment for late fee. Management may terminate this lease if Resident is chronically late with rent payment. Chronic late payment is defined as paying rent after the due date two or more times. Rental rates are kept the same or close to the same for those who always pay on time.

- 8) ____ **DO NOT MAIL ANY RENT PAYMENTS.** If checked, do not mail payments to any address. All payments must be directly deposited at the following bank _____ . Or if you prefer, you can utilize our automatic worry-free rent draft payment method.

- 9) **WORRY FREE PAYMENT METHODS:** Residents may select one of the following Standard "Worry-Free" payment methods for paying rent during the rental term, so that they don't have to worry about late fees every month. When selecting option (a), payments are automatically deducted from your checking or savings account. That way you won't have to worry about getting to the bank or mailing payments in time so as not to incur a late charge. One big benefit to residents who set up the worry free payments, is that this can help improve your credit score. This is because, utilizing this payment method, you can also request that all your payments be reported to one of the major credit bureaus. It's easy to set this all up. Just let the property manager know you wish to utilize the worry-free payment method for your rent. Residents then agree by giving authorization to arrange for rent collection by the method selected and debit appropriate account(s).

(a) ____ Electronic debit from checking or savings account on the following day(s) _____

(b) ____ Payroll deduction sent directly from employer biweekly or monthly.

(c) ____ Debit card or credit card debit from following account: _____.

- 10) **MONTH TO MONTH OPTION** – At the beginning of any new rental term, if resident prefers to rent on a month to month basis, instead of yearly, resident can elect to pay an additional amount added to the base rent of _____. Note: This option is not available to those who have already chosen to be on the Pay Day or biweekly plan.

- 11) **UTILITIES** – Resident shall pay for ALL utilities except if listed here _____ which shall be paid by Owner.

- 12) **DELIVERY OF PREMISES** -- Should Management be unable to deliver the Premises to Resident as agreed through no fault of Owner, then Owner nor Manager shall be liable for any resulting damages nor shall lease terminate. However, Resident shall not be liable for any rent until the Premises is available for Resident to take possession. Resident may terminate this Lease if Owner fails to deliver the Premises within 30 days of the Beginning Date.

- 13) **PROPERTY INSPECTION REPORT** – Unless otherwise noted, the initial Move-in inspection/condition report indicates that the Unit is in satisfactory, fit and habitable condition except for any items noted on the Move-in Report. If any property issues are discovered beyond anything reported at the time of move-in, they must be reported in writing within 5 days of move-in or resident will be responsible for any other property discrepancies.

Unless otherwise indicated, resident acknowledges there is a working smoke detector and that there is no visible evidence of mold in areas readily accessible within the home, nor any other issues or property defects.

Upon the termination of this Lease, Resident agrees to remove all of Resident's property from the Premises and deliver possession of the Premises to Management in good and clean condition. Excluding reasonable wear and tear, Resident will be liable for any damages that Owner may suffer due to Resident's failure to leave the Premises in the required condition. Any damage not noted in the Move-In Report which exists when Management makes the final inspection at the termination of occupancy will be charged to Resident and may be deducted by Owner from the Security Deposit. Resident also agrees to surrender to Management all keys to the Premises. Failure to return all keys will result in a deduction from the Security Deposit to compensate Owner for the cost of re-keying the locks. Resident gives permission to management to allow the following person to remove items from property if resident is unable to do so for any reason _____.

- 14) PHONE OR CABLE SERVICE** - Residents shall make his own arrangements for installation of additional services, including phone and cable desired and shall be responsible for all installation, additions, repairs and costs.
- 15) SECURITY DEPOSIT** – Resident has deposited the Security Deposit for the faithful performance of all terms and conditions of this Lease including, but not limited to, the return of all keys and surrender of the Premises in good and clean condition, reasonable wear and tear excepted, at the termination or expiration of this Lease. Resident may not use any of the Security Deposit as the last month's rent or for any other expense prior to the end of the rental term. Owner may transfer the Security Deposit, less any damages or other offsets, which shall be mailed to Resident(s) (in the names of all those on lease), together with an itemized list of deductions, as required by law only AFTER termination or expiration of the tenancy and surrender of the keys and Premises. Manager may retain any interest on the Security Deposit not required by law to be paid to Resident.
- 16) PETS** - Residents shall not permit any animal, wild or domestic, on the Premises without the prior consent of Owner. If Resident is given permission to have a pet, Resident shall pay Owner a one-time Pet Registration Fee of \$_____ plus a \$_____ per pet fee for each month the pet was/is on the premises, as additional rent. If Resident violates this provision of this Lease, Resident shall pay Management an Animal Fine of \$50 per animal, per day, for every day the violation continues, as additional rent. In addition, Management will require Resident to remove the animal or terminate this lease immediately. If it is discovered that a resident had an animal in the home without permission at any time during the term, there will be a minimum additional \$250 charged to the resident to cover any damages caused by the animal, additional cleaning of apartment required above normal wear and tear (including carpet cleaning/replacement, repainting to remove odors, and pest treatment). Residents may not have any animals on the premises for any reason for any length of time, including those owned by relatives or friends. Any animal found on property may be removed at resident's expense.
- 17) NOISE OR OTHER DISTURBANCES** - Resident will be responsible for their conduct and conduct of other people on the property (known by Resident or not) to ensure that other residents' peaceful enjoyment will not be disturbed; including, not making or permitting to be made any noises which interferes with the rights of others.
- 18) ASSIGNMENT AND SUBLETTING** – Resident shall not assign this Lease or sublet any or all of the Premises without Owner's written consent. Resident shall pay Management the Change Fee for administrative purposes in connection with any request to add or delete any person to the lease or to transfer to another unit. Any request for consent to add another person shall not waive Owners right to approve/disapprove any person.
- 19) PROPERTY MAINTENANCE** - Resident shall (a) have carpet cleaned once a year and at the termination of this Lease by contractor approved by management; (b) shall have all the a/c or furnace filters changed quarterly; (c) annually inspect all smoke detectors and replace batteries as necessary; (d) ___ If (d) is checked, residents are also responsible for the yard upkeep, including mowing of the grass. If any of these responsibilities are not carried out, management may pay to have the maintenance issue(s) taken care of and charge the resident.
- 20) EARLY RELEASE FEE** - Should resident desire to move-out prior to the end of the rental term, resident may pay a one-time fee equivalent to _____ month's rent to end the lease early and be released from any further rent obligation. However, resident must still a) give 60 day advance notice, b) pay rent up thru month of departure, c) pay any unpaid fees or obligations, d) return property in pre-move-in condition (any damages will be charged).

21) EARLY TERMINATION BY MILITARY PERSONNEL –

- a. If Resident is a member of the armed forces of the United States or a member of the National Guard serving on full-time duty or as a Civilian Service technician with the National Guard, the Resident may, through the procedure detailed in subsection (b) below, terminate this Lease if Resident (i) has received permanent change of station orders to depart 35 miles or more (radius) from the location of the Premises; (ii) has received temporary duty orders to depart in excess of three months' duration to depart 35 miles or more (radius) from the location of the Premises; (iii) is discharged or released from active duty with the armed forces of the United States or from his full-time duty or technician status with the National Guard; or (iv) is ordered to report to government-supplied quarters resulting in the forfeiture of basic allowance for quarters.
- b. Residents who qualify to terminate a rental agreement pursuant to subsection (a) shall do so by serving Owner a written notice of termination to be effective on a date stated therein, such date to be not less than thirty (30) days after the first date on which the next rental payment is due and payable after the date on which the written notice is given. The termination date shall be no more than sixty (60) days prior to the date of departure necessary to comply with the official orders or any supplemental instructions for interim training or duty prior to the transfer. Prior to the termination date, Resident shall furnish Owner with a copy of the official notification of the orders or a signed letter, confirming the orders, from Resident's commanding officer.

22) ALTERATION/ REPAIR - Resident shall not perform any renovation/alteration without Owner's prior written consent, including, but not limited to, carpeting, painting or wallpapering. Without Owner's prior written consent, Resident shall not change existing or install new (A) heat/air conditioning equipment, (B) antennae/cable connections, (C) phone outlets, (D) appliances, (E) lighting fixtures, or (F) locks. Any improvements will become a permanent part of the Premises and may not be removed at termination of Lease; however, Owner reserves the right to return the Premises to its original condition. Resident shall give Owner prompt notice of all accidents to or malfunctions of any part of the Premise. Repairs shall be made at Owner's discretion and with due diligence, and Resident shall pay for all repairs caused by the acts or omissions of Resident, his family or guests. Resident shall promptly report and pay the cost of repair or replacement of all broken or damaged glass, screens, doors, and wood, regardless of the cause of the damage, including acts of strangers. Resident shall not place on the Premises water beds, portable or space heaters, kerosene or woodburning stoves without written permission of Owner.

23) NO ILLEGAL ACTIVITY – Resident will not use the Unit or the Premises or permit the use thereof by others for any illegal purpose or activities, including without limitation, the illegal manufacture, possession, distribution, sale, or use of any controlled substance or for the facilitation of any manufacture, possession, distribution, sale or use of any controlled substance.

24) APPLICATION -- This Lease is entered into based upon information given by Resident on an application which is incorporated into and made a part of this Lease. Resident must advise Owner and Manager in writing of any changes to any information in the application. Owner may terminate this Lease if Resident materially misrepresented any information provided on the application.

25) NO ADVERTISEMENTS OR SOLICITATION – Resident agrees not to affix or suspend any advertisements or notices upon or from any part of the Unit or Premises without the prior written consent of Landlord.

26) LIABILITY- Neither Owner nor management shall be liable for any injury or damage to persons or property from any cause unless such damage shall be adjudicated to be a deliberate or negligent act on their part. Resident shall give Owner and management prompt notice of any defect/damage. Resident shall indemnify and hold harmless Owner and Management from all claims and shall protect his persons and contents on Premises by insurance, copy to be provided upon demand.

27) HOUSING CODES – Resident agrees to comply with all building and housing codes affecting health and safety.

28) ACCESS- Upon reasonable notice to Resident, Owner and Owner's duly designated representatives may (1) enter the Premises to (A) inspect, (B) make necessary repairs, alterations or improvements, (C) exhibit the Premises to prospective purchasers, residents, contractors, etc., and (2) place "For Sale" or "For Rent" signs on the Premises.

If the resident makes a request for maintenance, Owner may enter without prior notice in the case of an emergency or abandonment, or if notice to Owner of any anticipated absence from the Premises in excess of seven (7) days and, during such absence, Owner may enter the Premises. If Resident fails to give such notice, Owner may recover any damages sustained. If Resident refuses access to Owner as provided herein, Owner may obtain injunctive relief to compel access or terminate this Lease. In either case, Owner may recover actual damages sustained and reasonable attorney fees.

- 29) UTILITY SERVICE MAINTAINED** – Resident agrees not to permit any utilities that they are responsible for to be discontinued or cut off; this includes being responsible for maintaining electrical in service and in their name during the entire time of the tenancy. If service is interrupted for non-payment, that is a violation of the lease agreement and grounds for termination.
- 30) NO HAZARDOUS MATERIAL** – Resident will not keep in or about the Unit or Premises any explosives or any inflammable fluids or material of any kind constituting an unreasonable fire hazard.
- 31) FIRE/CASUALTY**- Resident shall not permit any act or omission which will increase the fire hazard or rate of insurance on the Premises or any property thereon including, but not limited to, the use of any portable heaters and wood burning stoves. Resident shall obey all federal, state and municipal laws and regulations. Except as otherwise provided, if the Premises are damaged by fire or other casualty, Owner shall repair the damage within a reasonable time. If the Premises are damaged to such an extent that the use and enjoyment thereof is substantially impaired, Resident may immediately vacate the Premises and within fourteen days thereafter, notify Owner in writing to terminate this Lease, in which case, this Lease terminates as of the day of vacating. However, if the damage was caused by a deliberate or negligent act of Resident, his family or guests, Resident shall be liable for all rent for the unexpired term of this Lease, without abatement, unless Owner elects to terminate this Lease, a right which Owner reserves in any event of substantial damage to the Premises.
- 32) CONDEMNATION**- If all or a substantial part of the Premises shall be acquired for any public use by the right of eminent domain, or deeded in lieu thereof; this Lease shall terminate on the date of such taking.
- 33) ABANDONMENT**- Any goods, vehicles, or other property left on the premise after termination of the tenancy by any means, including eviction, shall be considered abandoned and disposed of.
- 34) UNAUTHORIZED WORK**- The resident agrees that any maintenance work that is done by unauthorized workers, not pre-approved by management is done at the resident's expense.
- 35) DEFAULT** – If Resident fails to pay any Rent as when due, or Resident or any other person on the Premises with Resident's permission violates any of the provisions of this Lease or any Rules, or if the Premises is vacated or abandoned, Owner shall be entitled, in addition to any other rights and remedies to which Owner may be entitled by law or in equity, (A) to terminate this Lease and obtain possession of the Premises, (B) to any unpaid rent and other charges, (C) to injunctive relief and (D) to other damages, including the costs of necessary cleaning and repair, all costs for re-letting the Premises, and the cost of replacing or reprogramming all locks. In addition, at Owner's option, all installments of Rent for the balance of the then current Term shall be due and payable. All of Owner's remedies shall be cumulative, and the exercise of one or more remedies shall not be a waiver of any other remedy. Resident shall pay all costs, expenses, fees and charges incurred by Owner and Manager in enforcing any of the provisions, covenants, and conditions of this Lease, including reasonable attorney or service fees and court costs (to the extent not prohibited by applicable law), and Resident waives the benefit of any homestead, bankruptcy or similar exemption laws with respect to this Lease. If any provision of this Lease is invalid, the other provisions shall remain in effect.
- 36) MILDEW PREVENTION** – Resident will maintain the premises in such a condition as to prevent accumulation of moisture and the growth of mold (including, without limitation, closing all doors and windows during rain or snow) and to promptly notify Management in writing of any moisture accumulation that occurs or of any visible evidence of mold discovered by Resident.

- 37) ORAL PROMISES** -- This Lease, together with Resident's application and the Rules which are attached hereto, constitutes the entire agreement among the parties and, except as provided in the following sentence, may not be modified or changed except by written agreement executed by Owner and Resident. The Rules may be modified by Owner from time to time upon written notice to Resident. This Lease shall be construed, interpreted, and applied according to applicable Virginia law.
- 38) NOTICES** – Any notice to be given to Resident under this Lease shall be in writing and deemed given when hand delivered to any person residing at, or posted on the front door of, the Premises or when deposited in the United States Mail via first class or certified mail and addressed to the Resident at the Premises. Any notice to be given to Owner or Manager shall be in writing and deemed, given when deposited in the United States Mail via certified mail or when hand delivered and addressed to Manager at the address indicated above.
- 39) WAIVER** – Owner or Manager's waiver of one or more defaults by Resident shall not be considered a waiver of any subsequent default. NOTICE: acceptance by owner or manager of rent with knowledge of a material noncompliance by resident under this lease, or acceptance by owner or manager of performance by resident that varies from the provisions of this lease, or acceptance by owner or manager shall not constitute a waiver of such breach or variance, and any such acceptance of rent or performance shall be with full reservation of all of owner's and manager's rights and remedies. Acceptance by owner or manager of partial payment of any rent shall be on account of the actual rent, and no endorsement on any check or any other letter accompanying any payment shall be deemed a satisfaction and accord, but owner or manager may accept such payment without prejudice to any rights to collect the balance due. Resident accepts this notice as notice pursuant to applicable laws of the state where the property is located.
- 40) LOCKOUTS**- If Resident is locked out of the premises, there is a charge of \$____ to open the premises between the hours of 10am to 4pm during the week. There is a charge of \$_____ for opening the premises outside of those hours and on weekends or holidays. Additional charges apply if a key is lost and locks must be changed.
- 41) EQUAL OPPORTUNITY**- Owner and Manager are pledged to the letter and spirit of U.S. policy for the achievement of equal housing opportunity throughout the Nation. We encourage and support an affirmative advertising and marketing program in which there are no barriers to obtaining housing because of race, color, religion, sex, handicap, familial status, elderliness, or national origin. The Premises is offered and leased without regard to race, color, religion, sex, handicap, familial status, elderliness, or national origin.
- 42) ADDITIONAL RESIDENTS**- Persons other than those specifically listed on this Agreement shall be strictly prohibited from staying in the unit for more than 7 consecutive days, or a total of 20 days in any 12-month period. Resident shall notify the Management in writing any time Resident expects any guest will be staying in excess of the time limits in this paragraph. Additional residents cannot occupy the premises without first being approved by Management and are subject to additional rent, security deposit and assignment fee being required. Unauthorized residents are a violation of this agreement and are grounds for immediate termination.
- 43) PEST CONTROL**- Prior to move-in, management has each unit treated for pest control. After that the resident is responsible for pests, including for bed bugs, vermin, roaches, insects, etc., and any pest control treatments. If desired during the tenancy, the resident can coordinate with management to have a pest control treatment done at a relatively low cost to the resident.
- 44) EVICTED RESIDENTS**- If a former resident is evicted from the home or multi-unit, (or is asked by management or the police not to be on the property) current residents are asked not to invite those individuals back on to the premises. Any resident who invites non-welcomed individuals back on the premises is in violation of the lease. Any individuals found on premises who are no longer welcomed on property will be charged with trespassing.
- 45) LITTERING**- We also ask residents (and your guests) not to throw litter on the grounds or common areas. If there is evidence that residents, or their guests, have littered on the grounds, they will be fined \$____ per occurrence.

- 46) TRASH DISPOSAL-** Garbage must be disposed of in tied BAGS and disposed in the appropriate garbage receptacles or, if applicable, in the dumpsters provided. Do not have small children disposing of trash. If any individual is seen dropping off trash around garbage receptacles or dumpster (instead of inside the cans or dumpster), and management has to dispose of trash, resident will be charged a \$50 fine for each occurrence. If Management shall have to remove/impound any trash, garbage or items improperly disposed/left on property (i.e., furniture, mattresses, etc.), removal by Management will result in a \$50.00 removal fee. Also, please always place garbage receptacles out of public view and/or close gates to the dumpster area once trash is disposed of.
- 47) PLUMBING-** Management warrants that the dwelling's sewage drains are in good working order and that they will accept the normal household waste for which they were designed. They will not accept things such as paper diapers, sanitary napkins, tampons, children's toys, wads of toilet paper, paper towels used as toilet paper, balls of hair, grease, oil, table scraps, clothing, rags, sand, dirt, rocks, or newspapers. Do NOT use toilet cleaning equipment which indicates it can be flushed down the toilet after use. You will be responsible for any stoppages after 5 days of occupancy unless it was caused by mechanical failure of the plumbing system. If your system becomes clogged after this date, you are responsible for notifying the management and management will call a plumber of their choice to clear or repair the toilet at resident's expense. Residents agree to pay for clearing the drains of any and all stoppages except for those which the plumber, who is called to clear the stoppage, will attest in writing were caused by defective plumbing, tree roots, or acts of God. No reimbursement will be made for charges not pre-approved by management.
- 48) WHEN RESIDENT CONSISTS OF TWO OR MORE ADULTS-**The transfer of one person does not relieve the other of satisfactory completion of all terms of this agreement. Security deposits remain until all parties vacate.
- 49) RESIDENT ACKNOWLEDGES GOOD CONDITION OF PREMISES-** The Resident hereby acknowledges the good condition of the leased premises and acceptance of this lease is conclusive evidence that said premises are in good and satisfactory order and repair, unless otherwise specified herein, and Resident agrees that no representation to the condition of the premises has been made and there exists no promise to decorate, alter, repair or improve the premises unless otherwise specified in writing.
- 50) WRITTEN MOVE-OUT NOTICE-**A verbal move-out notice is not acceptable or sufficient under any circumstances. Resident is responsible for obtaining written acknowledgement from management that move-out notice has been received. A move-out notice is only accepted as proper on or before the 1st of the month. If insufficient notice is given after completion of the original lease terms and Resident is on a documented month-to-month lease term, Resident will be assessed an additional month's rent for giving notice on any day other than the 1st.
- 51) LOCKS** -No additional locks shall be placed upon doors of the premises. If more than one key for any lock is desired, the Resident must pay for the additional number. Upon the termination of the Lease, the Resident shall surrender to the Management all keys to the premises. Changing of the locks by resident is strictly prohibited. The Management shall retain duplicate keys to all doors of the leased premises, and the Management or its manager shall have access to the leased premises, at all reasonable hours, in order to inspect the same, or to make necessary repairs, either in the leased premises or in said building. The Management shall have the right during the last thirty days of the term hereby created to show the leased premises to prospective residence; and during the last ten days of the said term shall have free access to the leased premises in order to make repairs or redecorate the same for the incoming Resident, should it deem this action necessary.
- 52) TV ANTENNAS, AWNINGS, SHADE & FURNITURE** - No awnings or other projections except such as are installed by the Management shall be attached to the outside or other parts of the building, nor shall the Resident install or use any satellite dish and/or TV/radio aerial without the prior written consent of the Management. No additional lighting or decorations shall be attached to the outside or other parts of the building without prior written consent of the Management. No water filled furniture or aquariums allowed.
- 53) NO WASHING MACHINE, DRYER** - shall be placed or installed in the Resident's unit or in any other place on premises except where expressly permitted. ____ Check here if a laundry room is provided for resident's use.

- 54) REMOVABLE FOR OBJECTIONABLE CONDUCT** – If the Management shall at anytime deem the tenancy of the Resident undesirable for reason of objectionable or improper conduct on the part of the Resident, occupants or guests, causing annoyance or disturbance of other residents in said building, then the Management shall have the right to terminate the Lease by giving the Resident personally or by leaving at their unit a ____ days written notice to vacate the said premises, and the term of this Lease shall terminate upon the expiration of the therein mentioned, and Management may avail itself of any remedy provided by law for the restitution of possession.
- 55) NO CASH IS EVER ACCEPTED** by management or anyone working with management.
- 56) SMOKING CLAUSE** - It is preferred that residents do not smoke inside the unit. However, if they do, a minimum of \$250 may be withheld from their security deposit for additional cleaning and painting, required at move-out to remove all smoke related residue or odors remaining in the property.
- 57) FIRE HAZARDS (NO BARBECUE GRILLS)** - The resident shall not permit any act or thing to be done which will increase the fire hazard or rate of insurance on said premises. Barbeque grills are not permitted on the premise.
- 58) NO DAYCARE SERVICE OR BABYSITTING SERVICE** (or any other business activities) is permitted in the units.
- 59) WINDOW COVERINGS** shall be drapes, curtains, shades or blinds. Sheets, blankets, flags, etc. are strictly prohibited. If blinds, which are present at move-in, are damaged during tenancy, resident is responsible for replacement, or management will have them replaced at resident's expense, \$25 per set.
- 60) RETURNED CHECKS** – Resident shall pay a ____ fee for all **returned checks**, regardless of reason, plus a late fee may be assessed if returned check causes rent to be late. Thereafter payment must be in certified funds only.
- 61) USE OF WINDOWS, BALCONIES, DEFACING PROPERTY** – The Resident shall not suffer or permit anything to be kept on the window sills or balcony rails including hanging clothes, rugs, etc., and shall not store any materials, grills, chairs, furniture, automotive objects on the balcony/stairwells/parking lot of the leased premises. And Resident shall not permit anything to be placed in or hung from the outside of the windows.
- 62) FRONT ENTRANCE & STAIRWELLS** – The Resident shall not sit upon or permit any member of his household or visitors thereto to sit upon the entrance steps to multi-unit building or common areas in which the leased premises are located, and shall not park or permit the parking of any baby carriages, strollers, bicycles, tricycles, motorcycles, roller skates and the like, or the storing of any personal belongings upon the walks and lawns of the leased premises, or in common areas. The Management shall have the right to discard or impound any such articles deposited or parked in or upon such spaces without notice and without liability for damage and/or loss.
- 63) RENTERS INSURANCE** - Resident acknowledges that the owner's insurance policy does NOT cover Resident's liability to claims because of Resident's actions or negligence or loss or damage to personal possessions due to fire, theft, rain, smoke, wind, flood, water, pipe leaks or acts of others. Nor will owner or management be held liable for such losses. It's therefore a) recommended or b) required (circle one) that residents retain insurance coverage for fire, extended coverage, and liability to cover accidental injury and damage or loss of personal property due to fire, theft, smoke, rain, flood, wind, or Resident's actions or negligence. Residents understand those who do not maintain a current renter's insurance policy, not only lack protection for their personal belongings, the residents may also be responsible to others for the full cost of any injury, loss or damage to the property caused by your actions or the actions of your occupants or guests. If renter's insurance is required, resident's agree to show evidence of policy within a month from the date of this agreement.
- 64) PREVENTIVE MAINTENANCE CHECKS** – During each year of the rental term, to help insure certain items are functioning properly in the house for residents, management will have someone come to the house and do a quick preventive maintenance check. During this preventive check, items to be inspected will include (but not limited to): whether smoke detectors are working, if a/c or furnace filters need changing, of if there are any plumbing leaks. The first year the initial preventive checks will take place around month 3 and month 9.

- 65) BROKEN WINDOWS** are the responsibility of the Resident, under all circumstances, no matter who caused it.
- 66) RE-PAINTING** -Residents will be charged for re-painting the rental. If beyond normal wear and tear, residents are charged on a pro-rated basis for 2 year or longer. For residents residing in the rental for less than 2 years and painting is required, resident will be charged the full amount of the painting charge.
- 67) ACTIONS OF GUESTS** - Residents are held **responsible for all actions of their guests or guests** of any person entering into the premises.
- 68) NO LOITERING** permitted on the premises by resident or guests. We work with local police to enforce this policy.
- 69) CARPET CLEANING** - Resident is responsible for providing a receipt for **professional carpet cleaning** from a pre-approved company or management will deduct (\$_____) for the cost of cleaning from security deposit.
- 70) UTILITY TURN-OFF** -- Upon termination, residents agree to maintain utilities in their name for one additional day after turning keys over to management for any needed follow-up inspection of premises, appliances or contents.
- 71) PARKING FOR MULTI-UNITS** is on a first-come basis, unless the provision for assigned parking has been made. Parking is for residents only. A decal sticker will be provided to each resident. All unauthorized or inoperative vehicles or without proper tags will be towed at owners expense. No boats, campers, trailers, commercial vehicles and motor homes may be parked in the apartment community without Management's prior written consent. Residents using the parking spaces do so at their sole risk. All vehicles must be currently licensed and in good condition and must be parked only in spaces provided for parking. No car washing, changing of oil or vehicle repairs of any kind shall be conducted on the premises. No vehicle may be parked in front of dumpsters, blocking other vehicles, on the grass, outside the boundaries of a single designated parking space, or in entrances or exits. Management is not liable for any damages arising as a result of towing. Resident agrees to indemnify and hold Management harmless for any claims by your guests for towing of their vehicles for violation of these rules; and you acknowledge that it is your responsibility to advise your guests of the proper manner for the parking of their vehicles, and you further agree to determine in each case that they have complied therewith. Management may impose additional parking regulations including limiting the number of vehicles, and/or assigning parking spaces. No more than one vehicle is allowed for each adult resident without Management's prior written consent. An additional fee is required if an additional visitor pass is requested.
- 72) SETTING UP UTILITY ACCOUNTS** – Residents are responsible for setting up utility accounts in your name prior to move in and terminating all accounts at move out. Regarding water, **you are also responsible for water bills** unless indicated otherwise in writing. The only question is whether you'll be charged directly by the city utility company or by a submetering method. If checked here _____, your water bill will not come from the city but from either management or a submetering service. Please see separate addendum regarding submetering service or billing. Management shall not be liable for any loss or damage resulting from outages, interruption or fluctuations in utilities provided to you except provided by law.
- 73) HOLDING OVER** – If this Lease or Resident's right of possession is terminated and Resident fails to vacate the premises when required, Owner may immediately bring an action for possession of the Property. In addition, Resident shall pay Owner rent at a rate equal to 150% of the rent payable immediately prior to termination, for each month, or part of a month, that Resident fails to deliver possession of the Premises to Owner. Resident shall also be liable for any other damages Management may incur as a result of Resident's failure to vacate.
- 74) LAST MONTH'S RENT WILL NOT BE PRO-RATED** - Check out time is prior to 12:00 noon on your last day.
- 75) EMERGENCY CONTACTS** – The following person(s) are authorized to accept notices, messages, deliveries, etc., on behalf of resident(s) if they are not available. Name and phone: _____.

- 76) APPLIANCES** – Where permissible by law, the range, oven, refrigerator, and air conditioning unit(s) that are now in or may be placed in the premises by Management are solely for the convenience of the Resident, and if so placed shall be and remain the property of the Management. Management shall in no way be liable or responsible for damage arising out of negligent use or operation of the same or for the expense of repairing it. Management shall in no way be liable for any damage arising out of neglect, use or operation, or for the expense of repairing any of these items, including not responsible for the loss of any food. X_____
- 77) CUSTOMIZED UPGRADE:** For an additional \$____ per month you can have your choice of one of the following custom upgrades. a) Add a washer/dryer set; b) 32 inch Flat Screen TV; or c) _____.
- 78) SERVICE CHARGE** - For every court appearance and/or court filing, an additional fee for a service charge will be added to court costs, which the prevailing party in court is entitled. Each service charge is \$ _____. X_____
- 79) ALLOCATION OF PAYMENTS RECEIVED** – All money received from resident is first applied to any past due balance on residents account, including unpaid rent, late fee, deposit shortage, unpaid damages, charges or fines or utility charges past due that the resident is responsible for. If the balance of money received is not enough to cover the current rent by due date, an additional rent late fee will be charged to resident's account. X_____
- 80) MOVE-IN SPECIAL** - If resident was offered a move-in special which included a discount off first month's rent, but lease terms are not completely fulfilled during 1st year (i.e. paid late), the resident will be held responsible for paying back the initial discount given and that amount will be charged to the resident's account. X _____
- 81) EXPEDITED DEPOSIT PROCESSING** – Should the resident wish to receive whatever deposit they are entitled to faster than ____ days, the resident may give a written request for expedited processing of their security deposit, which will be sent within _____ days to your forwarding address . The fee for expedited processing is \$25.00.
- 82) FORWARDING ADDRESS** - Resident is responsible for giving management written forwarding address at move-out to forward deposit.
- 83) REFERRAL BONUS \$____** This bonus is offered to any resident who refers another resident. Plus new resident can receive \$____ off first month's rent (referral bonus cannot be offered in combination with any other special)

ADDITIONAL PROVISION(S):

- 84)** _____

- 85)** _____

- 86)** _____

THIS IS A LEGALLY BINDING CONTRACT. IF ANY TERMS ARE UNCLEAR TO YOU, SEEK COMPETENT ADVICE BEFORE SIGNING.

Property Manager _____

Resident _____
Resident _____
Resident _____

SAMPLE CLAUSES TO CONSIDER INCLUDING WHEN RENTING TO CORPORATE RENTERS

Rental information:

Arrival date: _____ Departure date: _____ (30 day written notice is required to vacate)
Check-in time: 4:00pm Check-out time: 11:00am Extensions possible: _____
Deposit: \$ _____ (required to reserve unit) Departure fee: \$ _____ (payable upon move-in)
Rate monthly: \$ _____ (first month's rent payable in advance) No refunds for early departure or non arrival.
Maid service: \$ _____ per visit if requested
Pets: Yes or no _____ Pet fees: _____
Key Deposit \$ _____ There is a \$50 charge for any replacement and/or missing key or access card

Rental payments: 1st month's rent is due prior to arrival. Rent is then due on the 1st of each month. Late fee of ____% of invoice plus \$ ____ a day. Payments are made/charged in the following manner _____

Security deposit/credit card authorizations: A deposit and corporate letter of responsibility and a valid credit card are required. The undersigned as the owner of the credit card does hereby fully authorize management to charge against the designated credit card account all charges due and owing from this rental agreement at the option of owner/management. Qualified corporations must sign a letter of responsibility. Security deposits shall be returned to the tenant, or written accounting made for any portion retained, listing the exact reasons for the retention (missing items/damages, rents, late fees, unit charges, departure fees, excess utilities, phone charges, other charges due under this agreement and interest as due), together with the balance of the security deposit within sixty days after departure.

Partial month calculation: All rents are billed on a monthly basis. If your stay starts or ends creating a partial month, the daily rate will be calculated as follows: Monthly rate divided by 30 days or _____

Departure notification/extensions: A written 30-day departure notice must be received for all stays. If written notice by either party is not given at least 30-days prior to the termination of the lease, then a new month-to month tenancy shall be created subject to the same terms and conditions of this lease at a monthly rate of \$ _____ per month.

Departure service fee \$ _____. Departure fee will automatically be applied to your initial invoice. (Any excessive cleaning and unit damage will result in additional charges.)

Checkout procedure: Lock all doors upon departure. Make key drop off arrangements with _____. Failure to depart by 11:00am shall result in additional daily rent. Management is not responsible for items/mail left behind.

Parking: Not all units have parking and space is very specific for each property. Additional charges may be incurred for parking. Owner/management is not responsible for stolen or damaged vehicles. Your vehicle may be towed if not parked in designated parking space and may result in an additional charge ranging from \$50 to \$250 depending on the specific garage or towing service. Any parking cards, garage openers, etc. not returned will result in additional charges.

Rules & Regulations: Tenant shall comply with the specific covenants, conditions and restrictions applicable to the rental property and/or condominium association. Violation may result in fines and/or eviction.

Occupying tenants: The lease must include the names of each person who is authorized to occupy this property.

Utility allowance _____. Usage above this amount will be charged to your account:

Pets: If pets are permitted, for each pet, there is a \$500 pet security deposit and a \$300 non-refundable fee. Undisclosed pets will result in a minimum \$500 fee, plus an additional amount of _____ added to the monthly rental rate.

Smoking in unit: All units are absolutely no-smoking. Deposits may be forfeited and a minimum \$1500 fee assessed if tenant smokes inside the unit.

Emergencies: For maintenance emergencies or service call _____. If the emergency or needed maintenance is due to tenant negligence, applicable charges will be applied to your account.